

21STCV25146 21STCV25146

County: los-angeles

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21STCV25146 JOSE

LUIS CASTELLANOS, et al. vs TAMIR BENYUN, et al.

July 7, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling - Motion to Set Aside

Dismissal (CCP § 473)

I.

Background

On January

8, 2021, Plaintiffs Jose Luis Castellanos ("Jose Luis"), Luis Alberto Castellanos ("Luis Alberto"), and Juan Manuel Magdaleno Estrada ("Juan Manuel")(collectively "Plaintiffs"), filed a complaint against Defendants Tamir Benyun ("Benyun"), Oz Pilo ("Pilo"), 911 Attic Remodeling, Inc. ("911 Attic")(collectively "Defendants"), and Does 1 to 100 alleging two causes of action: (1) motor vehicle negligence; and (2) general negligence.

On August

29, 2025, Plaintiffs filed a notice of settlement of the entire case.

On

December 5, 2025, the Court entered dismissal of the entire action pursuant to notice of settlement.

On April

8, 2026, Plaintiff Juan Manuel filed the instant motion to set aside dismissal.

On May 8,

2026, Defendant Pilo filed his opposition.

On May 8,

2026, Plaintiffs Jose Luis and Luis Alberto filed their joinder to the instant motion.

On May

21, 2026, 911 Attic filed its opposition.

To date,

no replies have been filed.

II. Motion

to Set Aside Dismissal

“Section 473(b) provides for both discretionary and mandatory relief [from dismissal]. [Citation.]” (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) An application for relief under this section must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Cal. Code of Civ. Proc. § 473(b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.) Additionally, an application for relief under this section “shall be accompanied by a copy of the answer or other pleading proposed to be filed herein, otherwise the application shall not be granted.” (CCP § 473(b).) Relief under this section is mandatory when based on an attorney affidavit of fault; otherwise, it is discretionary. (Ibid.) When dismissal is the attorney’s fault, the six-month period starts to run from the date of the entry of dismissal. (CCP § 473(b); Sugawara v. Newland (1994) 27 Cal.App.4th 294, 295.)

III.

Analysis

Plaintiffs bring the instant motion on the grounds that

“[a]ll four attorneys, and five parties to this case negotiated the terms of a

settlement agreement. Despite assurances by counsel for 911 Attic Remodeling, Inc has still not signed the settlement agreement. Thereby, necessitating the instant motion seeking to reinstate the case on active status, and set aside the dismissal entered on December 5, 2025 to allow the parties to enforce and finalize settlement.” (Motion at 2:3-8.) Plaintiffs further state that “as a result of mistake, inadvertence, and excusable neglect, Plaintiff’s counsel had calendared the [dismissal] hearing for [the wrong time].” (Id. at 2:12-21.) Plaintiffs argue that, due to this inadvertent failure to appear at the Order to Show Cause Re: Dismissal, the case was unintentionally dismissed in its entirety. (Ibid.)

In opposition, Defendant Oz Pilo argues that “[t]here is no dispute that plaintiffs have all settled their complaint with defendant PILO. If the Court grants plaintiff’s [sic] motion to set aside the dismissal, the dismissal should only be set aside as to defendant 911 ATTIC REMODLEING, INC. Defendant OZ PILO should remain dismissed pursuant to the terms of the settlement agreement/release of all claims.” (Opposition at 2:13-17.) Plaintiffs do not argue against this point.

In opposition, 911 Attic argues that Plaintiffs’ “delay [has] eliminate[d] much, if not all of the evidence that defendant needed to prove its defenses . . . The Plaintiffs do not, and fail to demonstrate any excusable reason for their years (not months) of neglect and fail to demonstrate and [sic] meritorious reason for reopening this Matter.” (Opposition at 2:8-14.) The opposition otherwise argues the merits of the instant action. (See generally Opposition.) However, 911 Attic does not address the substance of the instant motion and the settlement agreement which 911 Attic allegedly failed to finalize. (Ibid.)

Based on the foregoing, the Court finds that dismissal of the entire action was the result of Plaintiffs’ counsel’s inadvertent mistake, excuse, or neglect, and relief from dismissal is therefore mandatory pursuant to CCP § 473(b). The action is therefore reinstated. However, in the interest of justice, and pursuant to the parties’ settlement agreement, Defendants Tamir Benyun and Oz Pilo remain dismissed.

IV.

Conclusion

Plaintiffs’ motion to set aside dismissal is GRANTED in

part and DENIED in part.

The action is reinstated as to Defendant 911 Attic
Remodeling, Inc. Defendants Tamir Benyun and Oz Pilo remain dismissed from the
action pursuant to the parties' settlement agreement.

Moving party to give notice.